Master Services Agreement

This Master Services Agreement (the **Agreement**) is entered into on 15 January 2025 between **Nordwind Logistics GmbH**, Speicherstadt 12, 20457 Hamburg, Germany (the **Customer**) and **Clearpath Software Ltd**, 4 Harbour Row, Dublin 2, Ireland (the **Supplier**).

The Supplier provides a cloud-based fleet routing and warehouse optimisation platform. The Customer wishes to use the platform across its European logistics network on the terms set out below.

2. SERVICES

2.1 The Supplier shall provide the Services described in Schedule A, including hosting, maintenance, updates, second-level support and onboarding of up to 400 named users.

2.2 The Supplier shall perform the Services with reasonable skill and care and in accordance with good industry practice and all applicable laws.

3. TERM AND TERMINATION

3.1 This Agreement commences on the Effective Date and continues for an initial term of thirty-six (36) months, after which it renews automatically for successive periods of twelve (12) months.

3.2 The Customer may terminate this Agreement for convenience by giving the Supplier not less than ninety (90) days' written notice.

3.3 Either party may terminate this Agreement with immediate effect if the other party commits a material breach which is not remedied within thirty (30) days of written notice.

1. DEFINITIONS

“Affiliate” means any entity that directly or indirectly controls, is controlled by, or is under common control with a party.

“Business Day” means a day other than a Saturday, Sunday or public holiday in Hamburg, Germany.

“Confidential Information” means all information disclosed by a party that is marked as confidential or would reasonably be regarded as confidential.

“Customer Data” means all data, including personal data, uploaded to the platform by or on behalf of the Customer.

“Effective Date” means 1 February 2025.

“Fees” means the fees payable by the Customer as set out in Section 4.

The definitions in this Section apply throughout this Agreement, its Schedules and any amendment, unless the context requires otherwise.

“Personal Data” means has the meaning given in Article 4(1) of Regulation (EU) 2016/679 (GDPR).

“Service Credits” means the credits calculated in accordance with Section 5.3.

“Services” means the services described in Schedule A, as amended from time to time.

“Term” means the initial term together with any renewal term.

“Data Processing Addendum” means the addendum agreed between the parties governing the processing of Personal Data.

“Losses” means all losses, liabilities, damages, costs and reasonable legal fees.

4. FEES AND PAYMENT

4.1 The Customer shall pay the Supplier an annual subscription fee of EUR 1,200,000 (one million two hundred thousand euros), invoiced quarterly in advance.

4.2 Invoices are payable within thirty (30) days of receipt. Late payments bear interest at eight percentage points above the base rate[1].

4.3 Fees are exclusive of VAT, which shall be payable in addition at the applicable rate.

5. SERVICE LEVELS

5.1 The Supplier shall ensure that the platform is available at least 99.5% of the time in each calendar month, excluding scheduled maintenance announced at least 5 Business Days in advance.

5.2 Critical incidents shall be responded to within one (1) hour and resolved or worked around within eight (8) hours.

5.3 If availability falls below the level in Section 5.1, the Customer is entitled to Service Credits of 2% of the monthly fee for each 0.5% shortfall, capped at 10% of the monthly fee.

6. CONFIDENTIALITY

6.1 Each party shall keep the other party's Confidential Information confidential and use it only to perform its obligations under this Agreement.

6.2 The obligations in this Section 6 survive termination of this Agreement for a period of five (5) years.

1 The base rate published by the Deutsche Bundesbank pursuant to Section 247 of the German Civil Code (BGB).

7. LIMITATION OF LIABILITY

7.1 Neither party shall be liable for any indirect or consequential loss, loss of profit, loss of revenue or loss of goodwill.

7.2 Subject to Section 7.3, each party's total aggregate liability arising out of or in connection with this Agreement shall not exceed EUR 2,000,000 (two million euros) in any contract year.

7.3 Nothing in this Agreement limits liability for death or personal injury caused by negligence, for fraud, or for wilful misconduct.

8. DATA PROTECTION

8.1 The parties shall comply with the Data Processing Addendum, which forms part of this Agreement. In the event of conflict regarding Personal Data, the Data Processing Addendum prevails.

9. INDEMNITIES

9.1 The Supplier shall indemnify the Customer against all Losses arising from the claims listed in Table 9.1, up to the amounts stated for each indemnity. These indemnities are not subject to the cap in Section 7.2.

Table 9.1 – Supplier indemnities

Indemnity	Trigger	Maximum amount
Intellectual property	Third-party IP infringement claim	EUR 2,000,000
Data breach	Breach of the Data Processing Addendum	EUR 1,000,000
Personal injury / property	Third-party injury or damage on Customer sites	EUR 500,000
Total		**EUR 3,500,000**

9.2 The indemnified party shall notify the indemnifying party of any claim within fourteen (14) days and allow it to conduct the defence.

10. INSURANCE

10.1 The Supplier shall maintain professional indemnity insurance with a limit of not less than EUR 5,000,000 per claim and cyber liability insurance of not less than EUR 3,000,000.

11. FORCE MAJEURE

11.1 Neither party is liable for delay caused by events beyond its reasonable control. If such an event continues for more than sixty (60) days, either party may terminate on written notice.

12. GOVERNING LAW AND JURISDICTION

12.1 This Agreement and any non-contractual obligations arising out of it are governed by the laws of the Federal Republic of Germany, excluding the UN Convention on Contracts for the International Sale of Goods.

12.2 The courts of Hamburg, Germany have exclusive jurisdiction.

Signed for Nordwind Logistics GmbH: Jonas Petersen, Managing Director

Signed for Clearpath Software Ltd: Maria Jensen, Chief Executive Officer